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Probate Calendar for Tuesday September 15, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates (By Michele L. Rowe, Judge Pro Tem) Presiding

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
1	18PR-0044	Estate of: John Frangie	Petition Filed 3/10/2026 - Final Distribution Waiver Account	CONTINUED LIST: <i>The matter is continued to January 26, 2027 at 9:00 a.m. in D4, to be heard with the related Petition for Extraordinary fees. An Objection has also been filed.</i>
2	21PR-0410	Estate of: James Cerny	Petition Filed 3//09/2026 - Petition Final Distribution Waiver Account	CONTINUED LIST. <i>The Petition is continued to February 9, 2027 at 9:00 a.m. in D-4. All additional items must be filed by January 12, 2027. The following is noted:</i> <i>1. Distribution of this estate is to the Estate of Alfred D. Cerny. It is understood that through another Order in another estate, Petitioner alleges he is the beneficiary of the Estate of Alfred D. Cerny. This estate will order distribution to the Estate of Alfred D. Cerny, and the other Order may be used to collect the interest as ordered by that document. It is unclear based on paragraph 30 of the Petition who has the authority to waive the accounting on behalf of the Florida probate. Certified copies of the documents discussed in the Petition would be helpful for review.</i>

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				2. <i>The Inventory and Appraisal shows 50% ownership of the real property at 7450 Navajoa Avenue worth \$250,000. The Petition indicates that the other 50% owner agreed to allow the estate to sell the entire property in agreement for payment of half of the proceeds. It is unclear why the escrow statement shows the estate as the 100% owner of the property. If the estate only owns 50%, there is a loss on the sale amount of \$49,125, which should have been included in the calculation of statutory fees and as part of the Petition. It appears statutory fees should be \$7,286.37.</i> 3. <i>A revised Order is needed.</i>
3	22PR-0361	Estate of: Mitchell Jercich	Petition Filed 3/20/24- Final Distribution Waiver Account [DUE 8/18/26]; cont'd 10/08/24, 10/22/24, 5/6/25, 8/19/25, 3/17/26	CONTINUED LIST: <i>The Petition is continued to February 9, 2027 at 9:00 a.m. in D-4. All additional items must be filed by January 12, 2027. It appears the matter is still pending appeal. At this time, there are no scheduled actions with the Appellate Court noted.</i>
7	24PR-0167	Estate of: Braidon Esquibel	Status Report Filed 3/06/2026	CONTINUED LIST: <i>It is recommended the Court continue the Status Report to December 8, 2026, at 9:00 a.m. in D-4. All additional materials are to be filed by November 10, 2026. The following is noted:</i> 1. <i>The current Status Report lacks proof of service of the Notice of Hearing and the required warnings under Probate Code section 12201. If Petitioner is</i>

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				<i>struggling to find a party that needs to be served, a Declaration of Diligent Search may be filed.</i> <i>2. A proposed order is needed.</i>
10	24PR-0231	Estate of: Cynthia Sartin	Petition Filed 9/17/25 - Final Distribution, c/f: 4/14/26	CONTINUED LIST: <i>The matter is continued to January 12, 2027 at 9:00 a.m. in P2. All additional materials are due by December 15, 2026. The following is noted:</i> <i>1. The Distribution plan does not match the distribution outlined in the Will admitted to Probate. The document filed on August 4th does not address this issue. All assets are to pass to the Cynthia Sartin Living Trust, to be distributed under the terms of the Trust. The</i> <i>2. An Accounting was not located and account waivers were not located. The Petition indicates an account is to be approved. The receipts filed in the August 4th documents are insufficient and do not comply with Probate Code section 1060 et. seq. for an accounting.</i> <i>3. Nothing has been filed to address the following:</i> <i>a. Reimbursement request. Clarification is needed as to the \$2,050 paid to People's Choice. What was this regarding?</i> <i>b. Clarification is needed on the value of the estate as of the date of death, on October 5, 2023. The inventory and appraisal filed indicates the value is \$585,258.43 in one location and \$465,000 in another location.</i> <i>c. Clarification is needed as to why such a large reserve is needed? \$25,000 appears high based on the assets remaining. A reserve of \$2,000 to \$4,000 is recommended, absent specific information to explain the higher sum.</i> <i>4. A revised proposed order is needed. The one submitted does not have the correct distribution plan.</i>

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20	26PR-0173	Estate of: Shaun Corrales	Petition [DUE: 8/18/26] Filed: 5/20/2026; WILL; c/f 7/7/26	CONTINUED LIST. <i>The Petition is continued to December 15, 2026 at 9:01 a.m. in D-4. All additional items must be filed by November 17, 2026. The following is noted:</i> <i>1. Petitioner is not listed in Item 8 of the Petition. Please review the instructions therein.</i> <i>2. The Consulates of Canada and Germany require notice (Probate Code §8113). It is noted that the Supplement filed August 27, 2026 indicates that the parties residing in a foreign country have waived notice. However, notice to the Consulates is still required, unless these parties are not citizens of those foreign countries. The Supplement is silent on this issue.</i>
23	26PR-0272	Estate of: Carole King	Petition Filed: 8/5/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to January 5, 2027 at 9:01 a.m. in D-4. All additional items must be filed by December 8, 2026. The following is noted:</i> <i>1. Item 1 of the Petition is incomplete. The name of the newspaper that publication will occur in must be specified.</i> <i>2. Item 3 of the Petition is incomplete. The place of decedent's death must be specified.</i> <i>3. Item 3g(2)(a) of the Petition indicates that Petitioner is a person entitled to Letters. It is unclear what Petitioner's relationship to the decedent is.</i> <i>4. Item 3h(1) of the Petition indicates that the proposed personal representative is a resident of California, but the Duties and Liabilities form filed on August 5, 2026 indicates Petitioner resides in Wyoming. Clarification is needed.</i>

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				5. <i>Item 5a of the Petition is incomplete. Please check either box (3) or (4) and either box 5(a) or 5(b) as one of each is required to be checked.</i> 6. <i>Petitioner is not listed in Item 8 of the Petition. Please review the instructions therein.</i> 7. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i> 8. <i>Proposed letters have not been submitted.</i> 9. <i>An Objection has been filed.</i>
The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:				
4	23PR-0217	Estate of: Barry Bender	Status Report Filed 9/26/25 [DUE 8/18/26]; cont'd 9/30/25, 5/5/26	APPROVED LIST: <i>It is recommended the Court approve the Status Report filed on September 29, 2025. The next Status Report or Petition for Final Distribution is set for March 2, 2027 at 9:00 a.m. in D-4. All additional materials must be filed by February 2, 2027. A proposed order is needed.</i>
5	23PR-0359	Estate of: Richard Felker	Status Report Filed 3/16/2026	APPROVED LIST: <i>It is recommended the Court approve the Status Report filed on March 16, 2026. The next Status Report or Petition for Final Distribution is set for September 21, 2027 at 9:00 a.m. in D-4. All additional materials must be filed by August 24, 2027. A proposed order is needed.</i>
6	24PR-0057	Estate of: Sharon Thompson	Petition Filed 5/19/2026 - Final Distribution and Accounting	APPROVED LIST.
9	24PR-0191	In Re: McIntosh Family Revocable Trust dated 4/09/2001	Petition Filed 11/18/24 - Petition for Instructions [DUE 8/18/26]; cont'd 6/3/25, 11/04/25, 6/29/26	APPROVED LIST: <i>The matter is approved in part and deemed moot in part, as noted below as to the November 18, 2024 Petition For Instructions to Co-Trustee:</i> 1. <i>Probate Causes of Action: This cause of action is moot based on the appointment of Barry VanderKelen as Successor Trustee of the Trust on September 19, 2025.</i>

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				2. <i>Civil Causes of Action- Elder Abuse by G. Todd: Proof of service as to the one party on this cause of action has been served based on the proof of service filed December 23, 2025. Counsel for Gail Todd indicated at the last hearing that she intends to file a written Objection, and the Court ordered the Objection to be filed by August 18, 2026. It is recommended the Court deem the Objection waived due to the failure to file a written Objection (Cal. Rules of Ct., rule 7.801.) It is also recommended this cause of action Petition be approved. Petitioner will need to set a prove up hearing as to damages with the Civil Clerk's Office. A proposed Order is needed.</i>
11	24PR-0386	Estate of: Helen Maldonado	Petition Filed 3/3/2026 - Supplement Title of Proceedings and Reissue Letters	APPROVED LIST
13	25PR-0011	Estate of: Donald MacDougall	Petition Filed 12/12/2025 - Final Distribution	APPROVED LIST.
15	25PR-0169	Estate of: Thomas Pendley	Petition Filed 2/27/2026 - Final Distribution Waiver Account	APPROVED LIST.
16	25PR-0246	Estate of: Jon Moerman	Petition Filed 3/10/2026 - Final Distribution Waiver Account	APPROVED LIST.
17	25PR-0374	In Re: Janet A. Bardin Revocable	Petition Filed 11/12/2025 [DUE 8/11/26] - Confirming	APPROVED LIST:

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		Trust dated October 31, 1998	Trust Assets; cont'd 6/16/26	
18	25PR-0400	Estate of: Jeffrey Lord	Petition Filed 12/4/2025 [DUE 8/11/26]; cont'd 2/17/26	APPROVED LIST. <i>It is recommended the Petition be approved. At the last hearing on February 17, 2026, the Court ordered an Objection be filed by August 11, 2026. It is recommended the Court deem the Objection waived due to the failure to file a written Objection (Cal. Rules of Ct., rule 7.801.)</i>
22	26PR-0270	Estate of: Katja Luckow	Petition Filed: 8/4/2026 INTESTATE	APPROVED LIST:
<u>The following matters remain SET FOR HEARING and you should appear:</u>				
8	24PR-0191	In Re: McIntosh Family Revocable Trust dated 4/09/2001	Petition Filed: 03/11/2026- Revoking 1st AT	HEARING LIST: <i>Zoom or personal appearance is needed. The following is noted:</i> <i>1. Proof of service was provided on Ried, Matthew, Carolyn and Carson. All were completed via substitute service on others, who are either the Petitioner or have a direct benefit from this Petition. Nevertheless, it is unclear <u>what</u> Notice of Hearing was provided with the service of the underlying Petition. An amended proof of service, establishing what Notice of Hearing is needed. If the above persons are not minors, compliance with California Rules of Court, rule 7.51 will be needed regarding notice in care of another.</i> <i>2. Information is needed on the ages and relationship of each grandchild listed in the Petition to the parent/ child of the settlor. It is unclear if a GAL should be appointed, as both the Petitioner and Ms. Deborah McIntosh appear to have</i>

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				<i>adverse interests to the grandchildren listed as beneficiaries. Did Ronald have grandchildren?</i> 3. <i>Evidence is needed to establish the allegations of mental capacity for execution purposes. A prove up hearing will be needed once the above issues are resolved.</i> 4. <i>An Objection has not yet been provided.</i>
12	25CV-0095	Jessica Saldana vs. Philip Citek	Order to Show Cause Re: Proof of Deposit [DUE 8/11/26]	HEARING LIST: Zoom or personal appearance is required. At the last hearing on July 21, 2026, the Petition was approved subject to the probate notes being addressed, but nothing has been filed clearing the notes. A Declaration addressing the probate notes from July 21, 2026 is still needed.
14	25PR-0109	Estate of: Eric Campbell	OSC re Inventory and Appraisal [DUE 8/11/26]; cont'd 6/29/26	HEARING LIST: Zoom or personal appearance is required. At the last hearing on June 30, 2026, an Amended Final Inventory and Appraisal was ordered to be filed by August 11, 2026. Nothing has been filed. An Amended Final Inventory and Appraisal describing what items are included as "personal property" is needed. The items filed on June 29, 2026 are insufficient to clear the notes.
19	26PR-0068	In Re: Araceli Reyes Meastas	Petition Filed 2/20/2026 - Petition Determine & Compel Power of Attorney	HEARING LIST: Zoom or personal appearance is needed. The following is noted: 1. <i>Petitioner alleges the third party responded to the request, stating they were "unable to prove that Ms. Maestas was at capacity when the document was signed". A copy of the document showing this quoted language is needed. Additional information is needed on what was presented to the third party and how the rejection occurred. The letters provided only discuss an IRA, but the Petition is requesting information on many other items potentially held by the third party.</i>

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				2. Copies of the return receipts are needed on the two letters provided at the third party. The letters claim they were sent via certified mail; a return receipt is requested. Those receipts are needed. 3. A proof-up hearing will be needed to establish the fees and costs requested. 4. A proposed order is needed. 5. An Objection has not been received.
21	26PR-0193	Estate of: Stanley Vierra	Order to Show Cause re: Lodged Will	HEARING LIST: Zoom or personal appearance is required. The copy of the Will filed on August 26, 2026 is noted, but the document was not served on the required parties. The Court is concerned that not everyone was able to review the full Will submitted to be admitted to probate. It is unclear if the Court should admit the copy of the Will attached to the Petition, or the Will provided for lodging.
24	25PR-0193	Estate of: Kathleen Boyle	Ex Parte Hearing Request to Amend Order; IN PERSON	HEARING LIST: Zoom or personal appearance is required.
25	25PR-0193	Estate of: Kathleen Boyle	Order to Show Cause re: Proof of Deposit; cont'd 4/28/26; 8/18/26	HEARING LIST: Zoom or personal appearance is required.

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).
2. Emails must contain:
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
 - c. **Reason for Request.**
 - d. **No Attachments.**
3. Further, email inquiries must conform to the following guidelines:
 - a. Questions must be from an attorney or party on the case.
 - b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
 - c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
 - d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
 - e. Emails advising the Court of possible oversights may be sent.
 - f. **Continuances may not be requested via the probate email address.**
4. This email procedure is NOT to be utilized for:
 - a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
 - b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.

- c. Confirmation that documents have been reviewed.
5. Response Time. All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.